



SPONSOR: Sen. Townsend & Rep. Cooke

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 44

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO THE DIAMOND STATE PORT CORPORATION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend § 8781, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 8781. Creation of Diamond State Port Corporation.

(b)(1) The Corporation shall be governed by a board of directors consisting of ~~15~~ 14 members, all of whom shall be residents of this State. ~~Eight~~ Seven of these directors shall be:

(~~1~~) a. The Secretary of State;

(~~2~~) b. The Secretary of Transportation;

(~~3~~) ~~[Repealed.]~~

(~~4~~) c. The Secretary of Finance;

(~~5~~) d. The Controller General;

(~~6~~) e. The Co-Chairs of the General Assembly's Joint Legislative Committee on the Capital Improvement Program or their designee or designees; and

(~~7~~) f. The Secretary of the Department of Safety and Homeland Security.

(~~2~~) The ~~Governor Board~~, by majority vote, shall ~~appoint~~ elect the Chair from among the ~~5-cabinet board~~ directors and the Chair shall serve at the pleasure of the ~~Governor~~. Board. ~~The Chair shall be subject to the advice and consent of the Senate; however, such consent shall be limited to the additional duties of the Chair of this Corporation and not impact the prior confirmation as Cabinet Secretary.~~

(~~3~~) The remaining 7 directors shall be appointed by the Governor with the advice and consent of the Senate. These 7 directors shall consist of individuals from the private or public business sectors and organized labor familiar with port and economic development issues. There shall be at least 1 director from each of the 3 counties of the State, at least 1 director from the City of Wilmington and 3 directors who shall fill at-large positions on the Board. Of these 7 directors no more than 4 shall be registered in the same major political party. The terms of the original of these 7 such

23 directors shall be as follows: 2 directors to serve for 1 year; 2 directors to serve for 2 years; and 2 directors to serve for
24 3 years. Each noncabinet director shall serve a term of 3 years.

25 Section 2. The individual serving as Chair of the Board of Directors of the Diamond State Port Corporation on
26 the enactment date of this Act remains Chair of the Board of Directors until the conclusion of the second meeting of
27 the Board of Directors held following the enactment of this Act.

SYNOPSIS

This Act makes changes to the Diamond State Port Corporation (“Corporation”). Specifically, this Act does the following:

(1) Authorizes the Corporation’s Board of Directors (“Board”) to elect the Chair of the Board without the advice and consent of the Senate. Currently, the Governor appoints the Chair with the advice and consent of the Senate.

(2) In Section 2, provides for a transition period after this Act takes effect to ensure the Board has a Chair until the Board elects a Chair under this Act.

(3) Makes clear that the total membership of the Board is 14. The Director of the Division of Small Business was removed from the Board by Chapter 374 of Volume 81 of the Laws of Delaware, but the total number of members of the Board was not reduced to reflect the change.

(4) Makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

This Act requires a greater than majority vote for passage because § 1 of Article IX of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend a special act of incorporation.

Author: Senator Townsend